



Republic of the Philippines
Province of Laguna
City of Biñan

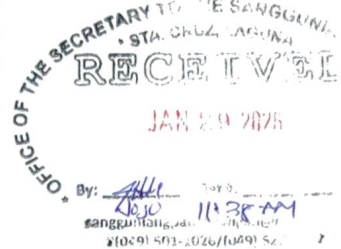
OFFICE OF THE CITY COUNCIL
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ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED DECEMBER 12, 2025.

PRESENT:

Hon. JONALINA R. REYES	- City Vice-Mayor/ Presiding Officer
Hon. LIBUNERO O. ALATIIT	- Councilor
Hon. LIZA L. CARDEÑO	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. JOSELLE TITUS V. BAUTISTA	- Councilor
Hon. ARTHUR R. DIMAGUILA	- Councilor
Hon. ELVIS L. BEDIA	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. ALEXIS H. DESUASIDO	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. INGRID KATHRINA L. ALMEDA	- Councilor
Hon. ALONZO KYNE S. GARCIA	- SK-Federation President
GERONIMO D. ROMANTIGUE, MDMG.	- City Council Secretary



GUESTS:

Mr. Jaime M. Salandanan (Former Councilor)
Legislative Staff of the City Government of Biñan

ABSENT:

Hon. DONNA ANGELA P. YATCO	- Councilor
Hon. GEMINIANO B. CATALON	- ABC-Federation President

CITY ORDINANCE NO. 34-(2025)

AN ORDINANCE ESTABLISHING A MONTHLY SUBSIDY PROGRAM FOR UNEMPLOYABLE PERSONS WITH DISABILITIES (PWDs) IN THE CITY OF BINANAND PROVIDING FUNDS THEREFORE

Authored by: Hon. Ingrid Kathrina L. Almeda

WHEREAS, Article XIII, Section 11 of the 1987 Philippine Constitution provides that the State shall adopt an integrated and comprehensive approach to health development, and shall endeavor to make essential goods, health, and other social services available to all the people at affordable cost, with special priority for the needs of the underprivileged, sick, elderly, disabled, women, and children;

WHEREAS, Article II, Section 9 of the same Constitution mandates the State to promote a just and dynamic social order that will ensure prosperity and independence of the nation and free the people from poverty through policies that provide adequate social services, promote full employment, and improve quality of life for all;

WHEREAS, Republic Act No. 7277, otherwise known as the "Magna Carta for Disabled Persons," as amended by Republic Act No. 9442 and further strengthened by Republic Act No. 10524, affirms the right of PWDs to equal opportunity for employment and access to social services, and directs both national and local governments to develop programs that will enhance their welfare and livelihood;

WHEREAS, Republic Act No. 10070 mandated the establishment of a Persons with Disability Affairs (PDAO)) in every province, city, and municipality to ensure the implementation of programs and services for PWDs at the local level.

WHEREAS, Republic Act No. 7160 otherwise known as the Local Government Code of 1991 empowers local government units (LGUs) to promote the general welfare of their constituents and to establish programs and projects that address the needs of vulnerable sectors, including persons with disabilities;

WHEREAS, the City Government of Biñan recognizes that there are PWDs who, due to the severity of their disabilities, age, or health condition, are unemployable and therefore require continued social assistance to sustain their basic needs and maintain dignity in life,

NOW, THEREFORE, be it ordained by the Sangguniang Panlungsod of Biñan City in session assembled, that:

SECTION 1. TITLE.

This Ordinance shall be known as the "Biñan City Monthly Subsidy Program for Unemployable Persons with Disabilities (PWDs) Ordinance."

SECTION 2. DECLARATION OF POLICY.

It is hereby declared the policy of the City Government of Biñan to uphold the rights and welfare of Persons with Disabilities, promote social equity, and ensure that PWDs who are unable to work due to permanent disability or incapacity shall receive sustained support from the local government.

SECTION 3. OBJECTIVES.

This Ordinance aims to:

- a. Provide regular financial assistance to unemployable PWDs in Biñan City;
- b. Strengthen the social protection programs of the City for vulnerable sectors;
- c. Promote inclusive governance and uphold the principles of equality and dignity among all citizens.

SECTION 4. DEFINITION OF TERMS.

For purposes of this Ordinance, the following terms shall be defined as follows:

1. **Person with Disability (PWD)** - refers to any individual suffering from restriction or different abilities, as a result of a mental, physical, or sensory impairment, which limits his or her capacity to perform activities in the manner or within the range considered normal for a human being, as defined under Republic Act No. 7277 (Magna Carta for Disabled Persons), as amended by R.A. 9442 and R.A. 10524.

2. **Unemployable PWD** - refers to a registered person with disability who, due to the severity or permanence of his/her physical, mental, or sensory impairment, is unable to engage in any gainful employment or livelihood, as certified by a licensed physician and validated by the Biñan City Persons with Disability Affairs (Biñan City PDAO).
3. **Subsidy**- refers to a financial assistance amounting to Five Hundred Pesos (P500.00) granted by the City Government of Biñan to qualified unemployable PWD beneficiaries to support their daily needs, medical requirements and other expenses.
4. **Beneficiary**- refers to a qualified and approved PWD applicant who meets all theeligibility requirements set forth under this Ordinance and is officially recognized by the City Social Welfare and Development Office (CSWDO) and the Biñan City PDAO.
5. **Biñan City Persons Disability Affairs Office (Biñan City PDAO)** - refers to the Office established pursuant to Republic Act No. 10070, responsible for formulating, implementing, and monitoring policies, plans, and programs for the promotion of welfare of PWDs at the local level in the City of Biñan.
6. **City Social Welfare and Development Office (CSWDO)** - refers to the local government office responsible for the delivery of basic social services and assistance programs to indigent and vulnerable sectors, including PWDs.
7. **Permanent Disability**- refers to any impairment or condition that is irreversible or long-term in nature, and which substantially limits the person's ability to perform work-related functions or daily activities.
8. **Certification of Unemployability**- refers to a formal document issued by a licensed physician and duly validated by the Biñan City PDAO. attesting that the PWD is physically or mentally incapable of engaging in any gainful employment or livelihood activity.
9. **Resident of Biñan City** - refers to a person who has continuously lived in Biñan City for at least three (3) consecutive years prior to the filing of application for the subsidy, as verified by the Barangay and CSWDO.
10. **Social Pension/Subsidy Overlap**- refers to the situation wherein a beneficiary is already receiving a regular pension or subsidy from any government agency (such as DSWD's Social Pension for Indigent Senior Citizens, GSIS, SSS, or similar programs), which disqualifies them from this specific local subsidy program to prevent duplication of benefits.
11. **Semiannual** -refers to a period of every six (6) months, or twice a year, during which the distribution of the PWD subsidy shall be conducted.

SECTION 5. COVERAGE AND ELIGIBILITY.

To qualify as a beneficiary under this program, an individual must:

1. Be a resident of Biñan City for at least three (3) consecutive years prior to application;
2. Be a registered PWD under the Binan City Persons with Disability Affairs Office (BPDAO);
3. Be certified as unemployable by a licensed physician and validated by the PDAO due to permanent disability or incapacity;
4. Not be a recipient of any regular pension, social pension, or similar government subsidy.

SECTION 6 MONTHLY SUBSIDY.

Each qualified beneficiary shall receive a monthly subsidy of five hundred pesos (Php500.00), the amount of which shall be determined and may be adjusted annually by the City Government based on budget availability and recommendations from the Local Finance Committee.

SECTION 6. IMPLEMENTING OFFICE.

The City Social Welfare and Development Office (CSWDO) and the Persons with Disability Affairs Office (PDAO) shall be the lead implementing Offices. They shall:

- Maintain a verified list of qualified beneficiaries
- Conduct periodic validation and monitoring;
- Ensure the transparent and efficient disbursement of funds.

SECTION 7. SOURCE OF FUNDS.

The funds necessary for the implementation of this program shall be charged to the Annual Budget of the City Government of Biñan, under the Social Welfare and Development Programs or any available fund sources as may be determined by the Local Finance Committee,

SECTION 8. MONITORING AND REPORTING.

The PDAO, in coordination with the CSWDO and the City Treasurer's Office, shall submit a semiannual report to the Sangguniang Panlungsod detailing the number of beneficiaries, disbursement of funds, and implementation outcomes.

SECTION 9. SEPARABILITY CLAUSE.

If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

SECTION 10. EFFECTIVITY.

This Ordinance shall take effect immediately upon approvals

UNANIMOUSLY APPROVED.

CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. JONALINA R. REYES
City Vice Mayor/Presiding Officer

APPROVED BY:


Hon. ANGELO B. ALONTE
City Mayor